

**SHARED TECHNOLOGY SERVICES AGREEMENT BETWEEN EDUTECH
GROUP, LLC AND BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL
DISTRICT BOARD OF EDUCATION**

This Shared Services Agreement (“Agreement”) is entered into between EduTech Group, LLC, a California limited liability company (“EduTech”), 130-A Cochran St., Simi Valley, CA 93065, and the Brecksville-Broadview Heights City School District Board of Education (“District”), 6638 Mill Road, Brecksville, Ohio 44141 (collectively, “Parties”).

WHEREAS, EduTech is an education technology company focused on delivering curated EduTech products and shared technology services to United States schools, both public and private; and

WHEREAS, District is a board of education that provides high-quality public education to students within its designated territory; and

WHEREAS, the Parties desire to formalize this Agreement to allow EduTech to provide the delivery of shared technology services pursuant to this Agreement.

NOW THEREFORE, in consideration of the mutual promises and obligations contained herein and other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. SHARED TECHNOLOGY SERVICES AND PERSONNEL

- a. **Shared Technology Services:** EduTech shall provide District the shared technology services (“Shared Technology Services”) set forth on Exhibit A attached hereto.
- b. **Exclusions; Third-Party Services:** Unless otherwise specifically stated on Exhibit A attached hereto, the District expressly acknowledges that the Shared Technology Services do NOT include any services related to security, such, as for example, the prevention or mitigation of computer viruses, data hacks, and cyber intrusions, and that the District is solely responsible for ensuring the security of its own data and computer systems. The District further acknowledges that the Shared Technology Services may require the availability of certain platforms and services that are provided and maintained by third parties (e.g., Google, Microsoft, Facebook, Twitter, etc.), and which platforms and services are subject to their own terms of use and policies. EduTech assumes no responsibility or liability for any interruption or termination of those third-party platforms or services, to the extent such interruption or termination was not caused by EduTech’s actions, or for any changes to their terms of use or policies, and District agrees to release EduTech of any liability arising from or related to the same to the extent not caused by EduTech’s actions.

- c. **Employees:** All technology personnel provided by EduTech pursuant to this Agreement shall remain EduTech employees. Without limitation to the foregoing, EduTech shall be responsible for, with respect to its own employees, all hiring practices, employee evaluations, and employee compensation and benefits and any applicable mandatory withholdings and contributions such as federal, state, and local income taxes, social security taxes, workers' compensation, and unemployment insurance. EduTech expressly agrees by withholding or otherwise to pay as and when due both the employee's and the employer's contributions to the Ohio School Employees Retirement System, as applicable, for any personnel who are deemed or determined to be District employees by virtue of services provided under this Agreement and to pay any applicable interest, charges or penalties imposed upon the District or EduTech's for its failure to do so in a timely manner.

Any personnel supplied to the District under this Agreement must possess current state license/registration and/or certification, as applicable and appropriate for the services requested by and provided to the District. EduTech shall provide the District with a copy of any and all license/registration and/or certification of such personnel. Any personnel supplied to the District under this Agreement must also meet EduTech and District conditions of employment regarding health clearance, provision of professional references, and any other applicable hiring criteria, documentation of which will be kept in the EduTech employee file.

- d. **Right to Dismiss.** If the District or its designee determines that any personnel provided by EduTech, has engaged in misconduct, has failed a background check with a disqualifying offense, or has been negligent, District may require such personnel to leave the District's premises/no longer work with the District, and will notify EduTech immediately. The District's obligation to compensate EduTech for such personnel's services will be limited to the number of hours actually worked. Upon the District's request and approval, EduTech must replace removed personnel with competent personnel.
- e. **Facilities and Equipment:** During the term of this Agreement, EduTech personnel may enter District facilities and access District equipment solely for the purpose of performing the Shared Technology Services consistent with the terms of this Agreement. District disclaims any warranty, guarantee, or representation with respect to the nature and condition of the facilities and equipment.
- f. **Materials and Supplies:** District shall provide the software, equipment, systems, materials, and supplies necessary for EduTech to perform the Shared Technology Services. EduTech shall advise the District regarding

any additional software, equipment, systems, materials and supplies that may be necessary for EduTech to perform the Shared Technology Services. All software, equipment, and systems purchased or otherwise provided by District under this Agreement shall remain the property of District, and subject to the District's acceptable use policy. District hereby represents and warrants that EduTech shall have full right and license (including any licenses from third parties) to use any software, equipment, systems, materials, or supplies provided by District for the sole purpose of performing the Shared Technology Services.

- g. **Access and Use:** District shall provide EduTech personnel with the necessary access, work space, passwords, and codes to provide the Shared Technology Services.
- h. **Cooperation:** All District personnel shall cooperate with EduTech in implementing the Shared Technology Services, and District shall comply with all reasonable requests of EduTech necessary to the performance of EduTech's duties under this Agreement. However, under no circumstances shall EduTech personnel manage, direct, discipline, transfer, suspend, lay off, recall, promote, discharge, assign, reward, evaluate, or otherwise supervise District personnel.

2. PAYMENT AND REIMBURSEMENT

In exchange for the Shared Technology Services to be provided during the initial twelve (12) month term of this Agreement, the District shall pay to EduTech the sum of Sixty-Seven Thousand Five Hundred Dollars (\$67,500), payable in equal quarterly installments, with each installment due no later than one calendar month prior to the end of the quarter, pursuant to the payment schedule attached hereto as Exhibit B.

In addition, subject to prior approval by the District, the District shall reimburse EduTech upon request for all reasonable and ordinary out-of-pocket expenses incurred by EduTech specifically on behalf and for the benefit of the District.

All payments tendered by the District under this Agreement shall be made payable to "EduTech Group, LLC" and delivered to EduTech Group, LLC, 130-A Cochran St., Simi Valley, CA, 93065.

3. TERM

The term of this Agreement shall be twelve (12) months, commencing as of the date of this Agreement, which term shall extend automatically for successive twelve (12) month periods (in each case, an "**Extension Period**") unless either party provides notice of termination to the other party no less than forty-five (45) days before commencement of the Extension Period. This Agreement shall also be

subject to termination as provided in Section 4 below. In the event of an extension pursuant to this Section, the payment amount will remain the same as the amount stated in Section 2, above, and Exhibit B, unless the parties mutually agree to a revised payment schedule.

4. TERMINATION

The District's failure to make payment when due shall constitute a breach of this Agreement. If such breach is not cured within thirty (30) business days, then EduTech may, at its option, elect to either: (i) suspend all Shared Technology Services until all past due amounts are paid, during which time EduTech shall remain entitled to payment as though EduTech had provided the Shared Technology Services; or (ii) terminate this Agreement, effective immediately, at which time any outstanding balance due on the date of termination shall be made on a pro rata basis. Notwithstanding the foregoing, EduTech's failure to exercise either of these remedies shall not constitute a waiver of the same.

5. CRIMINAL RECORDS CHECKS ON EMPLOYEES

EduTech shall ensure that all personnel complete and pass a background check done pursuant to O.R.C. 3319.39 and 3319.391 and applicable state regulations at the District's direction and EduTech's expense. Any personnel with a disqualifying offense shall immediately be removed from the District.

6. CONFIDENTIALITY/EDUCATION AND STUDENT RECORDS

- a. The Parties acknowledge that in the course of performing their obligations under this Agreement, they may obtain certain confidential and proprietary information about the other Party, including student personally identifiable information which is designated as confidential under applicable law ("Confidential Information"). The Parties agree that they will only use Confidential Information of the other Parties in the performance of their obligations under this Agreement and that they will not, at any time during or following the term of this Agreement, divulge, disclose or communicate any Confidential Information to any other person, firm, corporation or organization or otherwise use the Confidential Information for any purpose whatsoever without the prior written consent of the disclosing Party.
- b. Confidential Information does not include information which is: (a) in the public domain other than by a breach of this Section on the part of the recipient; (b) rightfully received from a third party without any obligation of confidentiality; (c) rightfully known to the recipient without any limitation on use or disclosure prior to its receipt from the disclosing party; (d) independently developed by the recipient; or (e) disclosed pursuant to the order or requirement of a court, administrative agency or other government body.

7. RELATIONSHIP BETWEEN THE PARTIES

- a. **Independent Contractor:** This Agreement is made with EduTech as an independent contractor and not as an employee or affiliate of District.
- b. **Separate Entities:** At all times, the relationship of the Parties shall be as separate entities.
- c. **Not a Joint Venture:** Nothing contained in this Agreement shall be deemed to be interpreted as a partnership or joint venture or any other arrangement whereby one of the Parties is authorized to act as an agent for another.
- d. **Employees:** Employees of the Parties shall remain employees of their respective employers and such employers shall have supervisory and all other responsibility for its respective employees.

8. NO THIRD PARTY BENEFICIARY

This Agreement is only for the benefit of the Parties and shall not be construed as or deemed to operate as an agreement for the benefit of any third party or parties, and no third party or parties shall have a right of action or obtain any right to benefits or position of any kind for any reason whatsoever.

9. ASSIGNMENT

The Parties shall not assign or otherwise transfer any of their interests, rights, or obligations in or under this Agreement without the prior written consent of the other Party.

10. NON-SOLICITATION

During the term of this Agreement, the District shall not, without the prior written consent of EduTech, either directly or indirectly, on behalf of themselves or on behalf of others, solicit or attempt to solicit, divert or hire away any person employed by EduTech.

11. NOTICES

- a. **Notices:** All notices, requests, demands, and other communications required or permitted to be given under this Agreement shall be in writing and mailed postage prepaid by certified or registered mail to the appropriate address indicated below.

EduTech: EduTech Group, LLC
130-A Cochran St.
Simi Valley, CA

District: Brecksville-Broadview Heights Local School District
6638 Mill Road
Brecksville, Ohio 44141

- b. **Delivery:** All notices, requests, demands, and other communications shall be deemed to have been given at the time when delivered via registered or certified mail, postage prepaid, and addressed to the party at the address set forth above, or to such changed address as a party may have fixed by notice to the other party hereto; provided, however, that any change of notice of address shall be effective only upon receipt.

12. DISPUTES

Should a dispute arise regarding the terms or services rendered under this Agreement, the Parties agree they shall meet at a mutually beneficial time and location and attempt, in good faith, to resolve the dispute through discussion.

13. WAIVER

The failure of any party to insist on strict compliance with this Agreement, or to exercise any right or remedy hereunder, shall not constitute a waiver of any rights contained herein or estop any party from thereafter demanding full and complete compliance therewith, nor prevent any party from exercising any right or remedy in the future.

14. FORCE MAJEURE

No Party shall be deemed to be in breach or default of any provision of this Agreement by reason of a delay or failure in performance due to acts of God, acts of governments, wars, riots, strikes, accidents in transportation, or other causes beyond the control of the Parties.

15. AMENDMENT

No modifications, waiver, mutual termination, or amendment of this Agreement is effective unless made in writing and signed by both parties.

16. GOVERNING LAW; ATTORNEY FEES

This Agreement shall be governed by and construed under the laws of the State of Ohio. Venue for any action regarding this Agreement shall be any court of competent jurisdiction located in Cuyahoga County, Ohio. In the event of any

controversy or dispute arising from this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party its reasonable expenses, including without limitation attorneys' fees and costs, actually incurred.

17. NON-DISCRIMINATION

Neither Party will discriminate on the basis of age, race, color, national origin, religion, sex, disability, being a qualified disabled veteran, being a qualified veteran of the Vietnam era, or any other category protected by law or District policy.

18. COMPLIANCE WITH LAWS

EduTech agrees that all services provided pursuant to this Agreement shall be performed in compliance with all applicable federal, state, and/or local rules and regulations.

19. ENTIRE AGREEMENT

This Agreement constitutes the complete and exclusive Agreement between the Parties. No other promises or agreements of any kind have been made to cause the Parties to execute this Agreement.

20. INSURANCE/RESPONSIBILITY

- a. **Indemnification:** EduTech agrees to indemnify and hold harmless the District, and its directors, officers, and agents from and against any and all claims, actions, or liabilities which may be asserted against them by third parties in connection with the negligent acts or omissions of EduTech, its directors, officers, employees (including, without limitation, the EduTech personnel providing services hereunder), or agents under this Agreement only.
- b. **Insurance and Attorney Fees:** Each Party shall maintain at its sole expense adequate insurance or self-insurance coverage to satisfy its obligations under this Agreement. Specifically, EduTech will maintain (at its sole expense), or require the individuals it provides under this Agreement to maintain, a valid policy of insurance evidencing general and professional liability coverage of not less than \$1,000,000 per occurrence and \$3,000,000 in the aggregate, covering the negligent acts or omissions by EduTech or its personnel under and in connection with the provision of services under this Agreement which may give rise to liability. EduTech will provide to the District a certificate (or certificates) of insurance evidencing such coverage upon the execution and delivery of this Agreement and shall also provide to the District in writing of any termination or change in such insurance during the term of this Agreement.

- 21. EXECUTION IN COUNTERPARTS:** This Agreement may be executed in counterparts, each of which shall be deemed an original and both of which together shall constitute one Agreement. True and correct copies, including facsimile, electronic, or PDF copies of signed counterparts, may be used in place of originals for any purpose and shall have the same force and effect as an original.

IN WITNESS WHEREOF, the Parties hereto have set their hands.

EduTech Group, LLC:

By _____
CTO / General Manager Date

Brecksville Broadview Heights City School District:

By _____
Board President (In his/her official capacity only) Date

And by _____
Superintendent (In his/her official capacity only) Date

And by _____
Treasurer (In his/her official capacity only) Date

*This Agreement has no legal effect absent Board action

EXHIBIT A

SHARED TECHNOLOGY SERVICES

During the term and at the times specified in the Agreement to which this Exhibit A is attached, EduTech shall provide the following Shared Technology Services:

- Information Technology Director
 - Management of engineers and technicians providing services to the school
 - Technology Planning
 - Technology Project Management
 - Technology Purchasing
 - Advise on all purchases that use or contain technology
- Technology Programs Manager Consulting
 - Google Management Console Services
 - Creation of accounts
 - Management of all Google apps
- Network Operation Engineer Consulting
 - Monitor and repair network equipment
 - Implement networking best practices for performance and security
 - Configure and install new network equipment
 - Maintain and update school servers
 - Configure and install new servers
 - Maintain network firewall and filter

Any changes or additions to the above services shall be made in writing signed by both parties. District acknowledges and agrees that any such changes or additions to the above services may result in an increase to the regular compensation owed to EduTech under the Agreement.

EduTech Initials: _____

Date: _____

District Initials: _____

Date: _____

EXHIBIT B

INITIAL TERM – PAYMENT SCHEDULE

Period	Months During Period	Payment Due Date	Payment Due
1	July 1, 2021 – September 30, 2021	August 31, 2021	\$16,875.00
2	October 1, 2021 – December 30, 2021	November 31, 2021	\$16,875.00
3	January 1, 2022 – March 30, 2022	February 28, 2022	\$16,875.00
4	March 1, 2022 – May 31, 2022	April 30, 2022	\$16,875.00
		TOTAL	\$67,500.00